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File No.: EXP202301048
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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: B.B.B. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 18, 2023. The complaint is directed against A.A.A. with NIF ***NIF.1

(hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that they are a neighbor of the respondent and that the latter has installed two surveillance cameras at their residence, one of which is oriented towards the public road, without prior administrative authorization for this, and the other towards the complainant's residence. Both cameras are not marked with the required signs indicating a monitored area.

Along with the notification, various photographs are provided that evidence the presence of the camera (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on January 30, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On April 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 25, 2023, a letter was received from the respondent regarding the facts related to the presence of cameras on their private property.

"The CCTV system was installed on June 9, 2017, when we renovated the house. The system retains images for a period of seven days. I have tried to send the images electronically but I am not allowed to; if you provide me with your email address, I can send you color images."

FIFTH: On May 31, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1 c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: On July 27, 2023, an Instruction Report was issued by the instructing body of the procedure, noting that the email address provided by the respondent for communication purposes is not valid, resulting in an "error" in transmission.

SEVENTH: On July 27, 2023, a was issued proposing to archive the procedure as it was not established that the system subject to the complaint did not comply with the current regulations, nor was it established that images of third parties and/or public space were obtained.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated January 18, 2023, through which the following is conveyed:

"that two cameras have been installed without the proper signage, one of which is oriented towards the public road, without prior administrative authorization for this, and the other towards the complainant's

residence"—page No. 1—.

Second: It is established that A.A.A., with NIF ***NIF.1, is the main responsible party, who does not deny being responsible for the installation of the system.

Third: It is established that the system has a total of four surveillance cameras for the security of the property as they do not reside habitually in the mentioned dwelling.

Fourth. From the initial allegations, no clear impact on the neighboring property has been established, nor that the mentioned cameras affect the private sphere of the complainant or affect third parties through unauthorized processing of their personal data.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 18/01/23, which raises as the main fact the following: "presence of two cameras that could be misaligned" (folio no. 1).

The facts to be analyzed by this Agency will be limited to the issue related to the alleged misalignment of the cameras, as they are installed in , although the field of orientation of the same has not been explained.

Article 5.1 c) of the GDPR provides as follows: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause. Moreover, with such devices, it is not permissible to obtain images of public space, as this is the exclusive competence of the State Security Forces and Corps, as they are responsible for preventing criminal acts and ensuring safety in the aforementioned public thoroughfare, in accordance with the provisions of Organic Law 4/1997, of August 4, and its implementing regulations.

It is worth noting that even in the case of a "dummy" camera, it must preferably be oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals may not install devices for obtaining images of public space and/or the transit of third parties, except in cases permitted by the regulations.

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The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as this would affect their free transit area.

III

On 25/04/23, a written statement of allegations was received from the party being complained against, providing photographic documentary evidence of what is visible with the cameras in question.

Upon analysis, the cameras are oriented towards the accesses of the complainant's private residence, without any evidence that they affect neighboring properties.

The cameras are installed on their private property without the need for signage, as it affects their personal and domestic sphere.

The mere observation by the complainant does not indicate a violation of the current regulations, as what is essential is what is captured on the monitor(s) of the same, being logical that they perceive it given the proximity between both properties.

Finally, the party being complained against has shown a collaborative attitude with this agency, which excludes any intention to infringe the current legal order, the reason for the installation being the protection of the home and its belongings.

IV

The principle of the presumption of innocence prevents attributing an administrative violation when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in the same. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning order and must be respected in the imposition of any sanctions, as the exercise of the ius puniendi in its various manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their own positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails:

"that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

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The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the presentation of evidence and a contradictory procedure in which the parties can defend their positions.

In accordance with this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

According to the above, it has not been possible to demonstrate any improper orientation of the installed cameras, although it is noted that they must be oriented exclusively towards one's own property, complying with all legal requirements.

The set of requirements that must be met in the case of installing a video surveillance system can be

consulted on the website of this Agency www.aepd.es, under the Acting Area - Videovigilance.

It is also noted that if you are going to be outside the national territory for long periods of time, you must register with an enabled electronic address or have the option where you can receive electronic administrative notifications, facilitating communication with all Spanish Administrations; a personal email address is not acceptable for administrative notifications.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the gradation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as the commission of an administrative infringement in the framework of personal data protection has not been established.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the additional provision four of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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